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Genre and the Limits of Saying: A Comparative Analysis of UNESCO's *Recommendation on the Ethics of Artificial Intelligence* and Abeba Birhane's "Machine Learning and Coloniality"

Two texts, published within a few years of one another, take up the same urgent subject: who should have access to artificial intelligence, and on what terms? The first is UNESCO's *Recommendation on the Ethics of Artificial Intelligence*, adopted in November 2021 by all 193 member states - a forty-one-page policy document written in the careful, multilateral idiom of international diplomacy. The second is "Machine Learning and Coloniality," a public lecture by cognitive scientist and Mozilla Senior Fellow Dr. Abeba Birhane, recorded before a researcher audience and uploaded to YouTube. Each text takes a position on the global distribution of AI, and each argues, in its own way, that something has to change. Yet, placed side by side, they could hardly look or sound more different.

The differences are not stylistic accidents. They are the work of genre. Raelke Grimmer reminds us that genre is best understood not as a label slapped onto a finished text but as "a tool" writers use throughout the writing process - a set of conventions that shapes what one can think, say, and prove. This essay extends that argument by comparing two texts that argue for adjacent things in radically different genres. The comparison reveals genre as more than a vehicle for

argumentation, but a determination of which arguments are sayable at all, who is permitted to make them, and what counts as evidence when they are made.

The two texts present sharply different speakers. UNESCO's *Recommendation* has no author in any ordinary sense; it is signed, in effect, by 193 governments. Its opening pages do not introduce a person but a process - the General Conference of UNESCO "recognizing," "considering," "noting," "convinced." The grammar of institutional consensus erases the individual and replaces her with the body. Birhane's talk does the opposite. From the first minute the viewer sees a single named scholar with a slide deck, a biography, and a voice. Where UNESCO's text accumulates the weight of nation-states, Birhane's accumulates the weight of evidence and personal authority. Each speaker's standing comes from a different source - the one institutional, the other expert - and each genre rewards a different kind of credibility.

The audiences are mirror images of the speakers. UNESCO addresses "Member States," the legal subjects empowered to ratify, translate, and implement its recommendations. Its language assumes a reader who can act through ministries, agencies, and law: "Member States should ensure," "Member States are encouraged to develop." The audience is, in effect, the state itself. Birhane's audience is researchers, students, and the curious public - people with no power to ratify anything but considerable power to think, to write, and to refuse. Her talk does not ask anyone to legislate. It asks them to look harder at what they have already been told.

The language of each text encodes these assumptions. UNESCO writes in the hedged, harmonized prose of international agreement. Verbs like "should," "encourage," "promote," and "ensure" do most of the work; harder verbs - "prohibit," "compel," "punish" - are almost entirely

absent. Even where the document acknowledges harm, it does so in passive, plural, abstract terms: AI systems “may reinforce existing biases”; data “may be misused.” Birhane’s language, by contrast, names things. She points at specific datasets - LAION, ImageNet - and shows what is inside them: stereotyped, exploitative, often non-consensual imagery of African and other global-south subjects. She names the corporations whose products encode those datasets. She names the dynamic - colonialism - by which Western tech extracts data, labor, and attention from African populations under the friendly banner of “AI for Africa.” Where UNESCO’s grammar dissolves agents, Birhane’s grammar restores them. This is not just a tonal difference. The diplomatic genre cannot, by convention, accuse anyone of anything; the scholarly-critical genre exists precisely to do so.

Each genre also relies on different appeals. UNESCO leans almost entirely on ethos - the authority of the institution, the weight of unanimous adoption, the formal architecture of articles and principles. Its logos is genuine but thin; specific empirical claims are rare, and pathos is essentially absent. Birhane reverses these proportions. Her ethos is real (a named scholar at Trinity College Dublin and the Mozilla Foundation), but it is not the load-bearing appeal. Logos carries the talk: datasets are pulled apart, examples shown on slides, citations stacked one on top of the other. Pathos enters too, through the naming of real subjects whose images were scraped without consent and real harms that are not abstractions. The diplomatic genre treats emotional appeals as unprofessional. The scholarly-critical genre treats them as evidence that the analyst has not lost sight of the people involved.

Most importantly, the two genres differ in what they can and cannot say. UNESCO can recommend equitable access, but it cannot accuse any state or corporation of producing the inequity in the first place. The genre is structurally incapable of antagonism, because antagonism would unravel the consensus that gives the document its gravitas. A treaty cannot indict its signatories. Birhane can accuse - that is precisely her genre's affordance - but she cannot bind anyone to action. No member state will reform its AI policy because of a YouTube lecture. Each genre, in other words, has both a power and a limit, and the limit is the price of the power. UNESCO trades sharpness for reach; Birhane trades reach for sharpness. Neither writer is hiding anything from the reader. The genres are doing the hiding, and the revealing, for them.

The comparison matters because the same subject - global AI inequity - looks like two completely different problems depending on which genre describes it. In UNESCO's text the problem is governance: a coordination challenge among well-meaning states, solvable through harmonized principles and shared standards. In Birhane's talk the problem is power: a colonial structure perpetuating itself in code, solvable only by naming and refusing it. Both descriptions are partly true. Neither could be made inside the other's genre. A reader who consults only one of these texts receives not just a partial picture but a structurally distorted one - distorted not by the speakers but by the genres they are operating in. The bias is built into the form.

This is what Grimmer means when she calls genre a tool rather than a frame. A tool determines what work is possible. A hammer does not "describe" a nail; it acts on it. UNESCO's *Recommendation* acts on its subject by making it governable, by translating it into the categories states already use - rights, harmonization, capacity-building. Birhane's talk acts on the same

subject by making it indictable, by translating it into the categories of critical theory - colonialism, extraction, refusal. Same subject, two tools, two different objects produced.

What this analysis suggests, finally, is that genre is not the wrapping paper of an argument. It is closer to the grammar. To choose a genre is to choose a set of speakers, audiences, appeals, and silences along with it. The same writer making the same claim in a different genre would not produce a different version of the argument; she would produce, in important ways, a different argument altogether. For a topic as consequential as who gets to use the most powerful technology of the century, the question of which genre we read first is not incidental. It shapes what we can think.

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